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#19 - ANTRANIK KEVORKIAN vs BANK OF AMERICA N.A. (THE BANK)

DEFENDANT'S

DEMURRER TO THE COMPLAINT

The complaint asserts causes of action for negligence, fraud, breach of contract, violation of Business and Professions Code section 17200, and violation of Business and Professions Code section 17500 against Bank of America, N.A.; the body of the complaint also includes allegations sounding in libel and slander.

The complaint alleges Plaintiff opened a checking account on October 19, 2024, asked Senior Banker Edgar Acosta whether he could deposit third-party checks, was told he could do so if both persons signed the back of the check, later deposited third-party checks, was accused of fraudulent deposits, and then had the account closed in January 2025. (Compl., pp. 2-3.)

Tentative Ruling

The demurrer is sustained with 10 days leave to amend.

Legal Authority and
Analysis

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (Holiday Matinee, Inc. v. Rambus, Inc. (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550), but the plaintiff

must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (Id. at 1098-1099.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (California Logistics, Inc. v. State of California (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Code Civ. Proc., § 430.40; see Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Mahan v. Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

Uncertainty

The complaint mixes factual allegations with legal authority and argument throughout the causes of action. That makes it difficult to determine which specific facts are intended to support each separate claim. For that reason, the demurrer to the complaint for uncertainty is sustained with leave to amend.

First Cause of Action — Negligence

The first cause of action incorporates the prior allegations and seeks negligence relief based on the same account-opening and account-closure events. To establish a claim for negligence, a plaintiff must allege and prove the following elements: The existence of a duty of care, breach of that duty, and an injury proximately caused by the breach. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.) The claim does not clearly separate a specific duty, breach, and causation theory from Plaintiff’s contract and fraud theories. The demurrer to the first cause of action is

sustained with leave to amend.

Second Cause of Action — Fraud

“The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.)

The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) “[Fraud’s] particularity requirement necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’ [Citation.]” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) “Less specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy.” (Wald v. TruSpeed Motorcars, LLC (2010) 184 Cal.App.4th 378, 394 [quotation marks omitted].)

To properly allege fraud against a corporation, a plaintiff must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

The complaint alleges that on October 19, 2024, Senior Banker Edgar Acosta told Plaintiff he could deposit a third-party check if both persons signed the back, that Plaintiff relied on that statement, and that the bank later told Plaintiff the banker was wrong and misguided him. The complaint also alleges Plaintiff deposited a third-party check on November 3, 2024 without issue. These allegations do not show that the statement was false when made, that the speaker knew it was false when made, or that Plaintiff can distinguish the alleged misrepresentation from the bank’s later account decision. The demurrer to the second cause of action is sustained with leave to amend.

Third Cause of Action — Breach of Contract

To plead breach of contract, a complaint must allege facts

showing (1) the existence of a contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) resulting damages to plaintiff. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821; Aton Center, Inc. v. United Healthcare Ins. Co. (2023) 93 Cal.App.5th 1214, 1230 [listing the same elements for breach of an oral contract].)

The complaint alleges Plaintiff opened a checking account on October 19, 2024 and asserts a breach-of-contract claim based on defendants' conduct and statements regarding bank policy and customer satisfaction. The claim does not identify the contract terms allegedly breached or clearly distinguish an enforceable promise from generalized statements and legal conclusions. The demurrer to the third cause of action is sustained with leave to amend.

Fourth Cause of Action — Business and Professions Code Section 17200

"Unfair competition under the UCL includes 'any unlawful, unfair or fraudulent business act or practice.'" (Jackson v. Lara (2024) 100 Cal.App.5th 337, 346 (quoting Bus. & Prof. Code, § 17200.)) "[A] plaintiff alleging an unfair business practice must show the defendant's conduct is tethered to an[] underlying constitutional, statutory or regulatory provision, or that it threatens an incipient violation of an antitrust law, or violates the policy or spirit of an antitrust law." (Id., at p. 347, citations omitted, internal quotation marks omitted.) "An 'unlawful' business activity includes 'anything that can properly be called a business practice and that at the same time is forbidden by law.'" (Smith v. State Farm Mut. Auto. Ins. Co. (2001) 93 Cal.App.4th 700, 717-718.) Section 17200 "borrows" from violations of other laws and "treats them as 'unlawful' practices independently actionable under the unfair competition law." (Id., at p. 718.)

"A plaintiff alleging unfair business practice under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 619.)

Plaintiff's UCL claim is not set out with sufficient clarity to identify the unlawful, unfair, or fraudulent business practice apart from the same unclear underlying allegations. The demurrer to the fourth cause of action is sustained with leave to amend.

Fifth Cause of Action — Business and Professions Code
Section 17500

The fifth cause of action is based on an alleged oral statement by a bank employee to Plaintiff on October 19, 2024, and defendant's demurrer points out that the complaint alleges no dissemination of that statement to the public.

Business and Professions Code section 17500 provides that it is "unlawful for any person, firm, corporation or association, or any employee thereof with intent directly or indirectly to dispose of real or personal property or to perform services, professional or otherwise, or anything of any nature whatsoever or to induce the public to enter into any obligation relating thereto, to make or disseminate or cause to be made or disseminated before the public in this state, or to make or disseminate or cause to be made or disseminated from this state before the public in any state, in any newspaper or other publication, or any advertising device, or by public outcry or proclamation, or in any other manner or means whatever, including over the Internet, any statement, concerning that real or personal property or those services, professional or otherwise, or concerning any circumstance or matter of fact connected with the proposed performance or disposition thereof, which is untrue or misleading, and which is known, or which by the exercise of reasonable care should be known, to be untrue or misleading, or for any person, firm, or corporation to so make or disseminate or cause to be so made or disseminated any such statement as part of a plan or scheme with the intent not to sell that personal property or those services, professional or otherwise,...as so advertised..."

The claim does not allege public dissemination or advertising-type conduct. The demurrer to the fifth cause of action is sustained with leave to amend.

Defamation Theory

Defendant's demurrer treats the complaint's libel-and-slander discussion at pages 28:7 through 31:6 as a sixth cause of action. (Demurrer, p. 3, n. 1 ["Plaintiff has not listed this cause of action in the caption, and has not numbered it in the Complaint. However, at 28:7-31:6, the Complaint makes various allegations regarding libel and slander. For

ease of reference, BANA has numbered this the Sixth Cause of Action.”].)

Defamation is a tort that involves the intentional publication of a statement of fact which is false, unprivileged, and has a natural tendency to injure or which causes special damage. (Smith v. Maldonado (1999) 72 Cal.App.4th 637, 645; Civ. Code, §§ 45, 46.) To constitute defamation, a publication must be made “to some third person who understands the defamatory meaning of the statement and its application to the person to whom reference is made.” (Sanchez v. Bezos (2022) 80 Cal.App.5th 750, 763.)

The complaint alleges the bank sent Plaintiff a letter on January 13, 2025 stating he could no longer have an account with the bank, but it does not identify publication of a defamatory statement to a third person. As pleaded, the complaint's defamation theory is insufficient. The demurrer to the defamation theory is sustained with leave to amend.

Moving Party is to give notice.